

25CHCV03145 25CHCV03145

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C09%2F14%2F2026

Source SHA-256: 66b65123ca0d045f70d175bd2fb9aa1fa3112421d44cdb249d268ccf32522e82

Case Number: 25CHCV03145 Hearing Date: September 14, 2026 Dept: F46

Dept. F-46

Hearing Date: September 14, 2026

Case Number: 25CHCV03145

MOTION TO QUASH

SUBPOENAS FOR PRODUCTION OF RECORDS

Motion filed on April 30, 2026.

MOVING PARTY: Plaintiff, Koshalie Thenabdu

RESPONDING PARTY: Defendant, City of Los Angeles

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks to quash deposition

subpoenas directed to Miguel A. Mejia, M.D., State Farm Mutual Automobile

Insurance Company, and Molina Healthcare of California. Plaintiff also requests

attorney fees and costs.

RULING: Granted in part.

BACKGROUND

On September 4, 2025, Koshalie Thenabdu (Plaintiff) and Indurava

Jayashinghe, a minor by and through Guardian ad Litem Premil Jayashinghe, filed

the Complaint against City of Los Angeles (Defendant City), County of Los Angeles, State of California, and Does 1 through 50, alleging Motor Vehicle, General Negligence, and claims under Government Code sections 815 and 820.

Plaintiff filed the Motion to Quash and supporting separate statement on April 30, 2026. The motion is supported by the declaration of Steven Ross and exhibits. Defendant City filed an opposition on July 29, 2026, supported by the declaration of Lala Kahramanian. Plaintiff filed a reply on August 6, 2026.

On August 13, 2026, the Court continued the hearing to September 14, 2026 to permit service on the subpoenaed custodians and deposition officer. Plaintiff thereafter filed re-noticed motion papers and proofs of service reflecting service on the subpoenaed custodians and deposition officer.

DISCUSSION

Code of Civil Procedure section 1985.3, subdivision (g), permits a consumer whose personal records are sought by subpoena to move under section 1987.1 to quash or modify the subpoena. Section 1987.1 authorizes the Court to quash or modify a subpoena and to protect against unreasonable or oppressive demands, including unreasonable violations of privacy. (Code Civ. Proc., §§ 1985.3, subd. (g), 1987.1.) Discovery may be obtained as to nonprivileged matter relevant to the subject matter involved in the action. (Code Civ. Proc., § 2017.010.)

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy, and a serious threatened intrusion. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) The party seeking discovery may identify the legitimate and important countervailing interests served by disclosure, while the party seeking protection may identify feasible alternatives or protective measures. The Court then balances the competing considerations. (*Ibid.*) An obvious invasion of an interest fundamental to personal autonomy must be supported by a compelling interest. (*Id.* at pp. 556-557.)

A personal injury plaintiff waives the physician-patient privilege as to information concerning medical conditions placed in issue. The waiver extends only to information relating to those conditions and does not

automatically open all past medical history to discovery. (Britt v. Superior Court (1978) 20 Cal.3d 844, 849.) Discovery may extend to other injuries or illnesses insofar as they contributed to a medical condition placed in issue. (Id. at p. 864, fn. 9.)

Miguel A. Mejia, M.D.

The Miguel A. Mejia, M.D. subpoena seeks medical, billing, and radiology records from February 27, 2015 to the present. (Ross Decl., Ex. A.) Plaintiff establishes a protected privacy interest in the records, an objectively reasonable expectation of privacy, and a serious threatened intrusion. Defendant City identifies its need to investigate causation and the nature and extent of Plaintiff's claimed injuries as countervailing interests. (Williams, *supra*, 3 Cal.5th at p. 552.)

The balance favors disclosure of the medical and radiology records. Plaintiff claims headaches, cervical spine pain and injury, lumbar spine pain and injury, thoracic spine pain and injury, bilateral shoulder pain and injury, right wrist pain and injury, and right foot pain and injury. (Kahramanian Decl. ¶ 3.) Plaintiff identified Dr. Mejia as her primary care physician. (Id. ¶ 4.) Defendant City disputes causation and the nature and extent of those injuries. (Opp. at 5.) Records of Plaintiff's treatment before and after the incident may bear directly on those issues.

Plaintiff requests a body-part limitation. Defendant City argues such a limitation would require the records custodian to determine which records concern the claimed conditions. (Opp. at 7.) Given the number and breadth of conditions Plaintiff has placed in issue, a strict body-part limitation could exclude records concerning other injuries or illnesses that contributed to those conditions. (Britt, *supra*, 20 Cal.3d at p. 864, fn. 9.) The Court declines to impose the requested body-part limitation. Plaintiff's meet-and-confer proposal also used a ten-year pre-incident period. (Ross Decl., Ex. B.) Defendant City's interest in investigating causation and the nature and extent of the claimed injuries outweighs Plaintiff's privacy interest as to medical and radiology records within that period. The motion is denied as to medical and radiology records from February 27, 2015 to the present.

The balance does not favor disclosure of pre-incident billing records. The opposition explains why prior treatment may bear on causation, but does not explain how billing information for treatment predating

the February 27, 2025 incident advances Defendant City's causation, damages, or nature-and-extent arguments. The billing portion of the subpoena is modified to February 27, 2025 to the present.

State Farm Mutual Automobile Insurance Company

The State Farm Mutual Automobile Insurance Company subpoena seeks all insurance records, medical records, correspondence, payments, claims, and other documents contained within Plaintiff's insurance file from February 27, 2015 to the present. (Ross Decl., Ex. A.) Plaintiff establishes a protected privacy interest in the requested records, an objectively reasonable expectation of privacy, and a serious threatened intrusion. Defendant City identifies its interest in discovering prior accidents or injuries bearing on causation and the nature and extent of Plaintiff's claimed injuries. (Williams, *supra*, 3 Cal.5th at p. 552.)

That interest does not justify the breadth of the subpoena.

Plaintiff identified State Farm as her automobile insurer. (Kahramanian Decl. ¶ 4.) Defendant City contends State Farm would have records of accidents or injuries before and after the subject incident. (Opp. at 5.) Defendant City identifies no prior or subsequent accident, date of loss, bodily injury claim, overlapping injury, or other facts connecting the requested State Farm records to the issues in this action. The subpoena instead seeks the entirety of Plaintiff's insurance file from February 27, 2015 to the present. The privacy interests implicated by that disclosure outweigh the generalized showing made by Defendant City. The State Farm subpoena is quashed.

Molina Healthcare of California

The Molina Healthcare of California subpoena seeks all insurance records, medical records, correspondence, payments, claims, and other documents contained within Plaintiff's insurance file from February 27, 2015 to the present. (Ross Decl., Ex. A.) Plaintiff establishes a protected privacy interest in the requested records, an objectively reasonable expectation of privacy, and a serious threatened intrusion. Defendant City identifies its interest in discovering prior injuries or treatment bearing on causation and the nature and extent of Plaintiff's claimed injuries. (Williams, *supra*, 3 Cal.5th at p. 552.)

That interest does not justify

the breadth of the subpoena. Plaintiff identified Molina as her health insurer. (Kahramanian Decl. ¶ 4.) Defendant City contends Molina would have records of injuries before and after the subject incident. (Opp. at 5.) Defendant City identifies no prior treatment, provider, diagnosis, claim, or other specific information in Molina's records connected to the injuries at issue. The subpoena instead seeks the entirety of Plaintiff's health insurance file from February 27, 2015 to the present, including medical and payment information. The privacy interests implicated by that disclosure outweigh the generalized showing made by Defendant City. The Molina subpoena is quashed.

Attorney Fees and Costs

Code of Civil Procedure section

1987.2, subdivision (a), permits the Court, in its discretion, to award reasonable expenses incurred in making or opposing a motion under section 1987.1, including reasonable attorney fees, if the Court finds the motion was made or opposed in bad faith or without substantial justification, or that one or more requirements of the subpoena were oppressive. Here, the notice of motion does not request such relief, and the supporting declaration provides no amount requested, hourly rate, hours incurred, or costs. (Ross Decl. ¶¶ 1-6.) Plaintiff requests attorney fees and costs only in the memorandum's conclusion. Plaintiff's request for attorney fees and costs is denied.

CONCLUSION

Plaintiff's motion to quash is granted in part.

As to the subpoena directed to

Miguel A. Mejia, M.D., the motion is denied as to medical and radiology records from February 27, 2015 to the present and as to Plaintiff's request for a body-part limitation. The motion is granted in part as to billing records. The subpoena is modified to limit billing records to February 27, 2025 to the present.

As to the subpoenas directed to

State Farm Mutual Automobile Insurance Company and Molina Healthcare of California, the motion is granted. Those subpoenas are quashed.

Plaintiff's request for attorney fees and costs is denied.